UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

MARIA RIVERA, individually and on behalf of all others similarly situated, Plaintiff,
v.
NORTHWIND APPLIANCE CO., Defendant.

Case No. 1:25-cv-04417

CLASS ACTION COMPLAINT AND DEMAND FOR JURY TRIAL

Plaintiff Maria Rivera brings this action against Northwind Appliance Co. ("Northwind") on behalf of herself and all others similarly situated, and alleges as follows on personal knowledge as to herself and on information and belief as to all other matters.

NATURE OF THE ACTION

1. This case concerns the Northwind DW-500 dishwasher, which Northwind has marketed and sold nationwide since March 2021. The DW-500 contains a defective door-latch wiring harness that overheats during the drying cycle and can melt the control panel and ignite (the "Harness Defect").

2. Northwind knew of the Harness Defect before the DW-500 reached most consumers. Its own internal thermal testing report dated August 2, 2021 found harness temperatures more than 30 percent above the design specification. Northwind nonetheless continued selling the DW-500 without disclosure.

PARTIES

3. Plaintiff Maria Rivera is a citizen of Florida who resides in Miami-Dade County.

4. Defendant Northwind Appliance Co. is a Delaware corporation with its principal place of business in Columbus, Ohio. Northwind designs, manufactures, markets and warrants the DW-500.

FACTS SPECIFIC TO PLAINTIFF

5. On May 14, 2022, Ms. Rivera purchased a new Northwind DW-500 dishwasher from a HomeMart store in Miami, Florida for $849.00, including installation by a HomeMart-certified installer.

6. On January 9, 2024, while the DW-500 was running a normal drying cycle, smoke began pouring from the control panel and a fire started inside the unit. Miami-Dade Fire Rescue responded and extinguished the fire. Ms. Rivera's kitchen cabinets and flooring were damaged.

7. On January 12, 2024, Ms. Rivera submitted a warranty claim to Northwind. Northwind denied the claim by letter dated February 2, 2024, asserting that the damage was caused by improper installation.

8. Northwind never informed Ms. Rivera of the Harness Defect. Had she known, she would not have purchased the DW-500 or would have paid substantially less for it.

CLASS ALLEGATIONS

9. Plaintiff seeks to represent the following class (the "Nationwide Class"): All persons in the United States who purchased a new Northwind DW-500 dishwasher between March 1, 2021 and the date of class certification.

10. Plaintiff also seeks to represent a subclass (the "Florida Subclass"): All members of the Nationwide Class who purchased their DW-500 in the State of Florida.

11. Upon information and belief, Northwind sold more than 180,000 DW-500 units during the class period. The class is therefore so numerous that joinder of all members is impracticable.

CAUSES OF ACTION

COUNT I: Breach of the Implied Warranty of Merchantability (on behalf of the Nationwide Class).

COUNT II: Violation of the Florida Deceptive and Unfair Trade Practices Act, Fla. Stat. Section 501.201 et seq. (on behalf of the Florida Subclass).

COUNT III: Unjust Enrichment (on behalf of the Nationwide Class, in the alternative).

PRAYER FOR RELIEF

Plaintiff requests that the Court certify the proposed Class and Subclass, appoint Plaintiff as class representative and her counsel as class counsel, award compensatory and statutory damages, order restitution, enjoin Northwind from continuing to conceal the Harness Defect, and award attorneys' fees, costs, and pre- and post-judgment interest.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all claims so triable.

Dated: March 3, 2025

Respectfully submitted,
Counsel for Plaintiff and the Proposed Class